

Smt Chintamani Alias Priyanka W/O. ... vs Girish S/O Shankar Naik on 4 August, 2023

-1-

NC: 2023:KHC-D:8576
CP No. 100174 of 2022

IN THE HIGH COURT OF KARNATAKA

DHARWAD BENCH

DATED THIS THE 4TH DAY OF AUGUST, 2023

BEFORE

THE HON'BLE MR JUSTICE C.M. POONACHA
CIVIL PETITION NO. 100174 OF 2022

BETWEEN:

SMT. CHINTAMANI @ PRIYANKA W/O. GIRISHA,
AGED ABOUT 29 YEARS,
SINECURE,
R/O. HARAPANAHALLI TOWN AND (TQ)
VIJAYANAGARA DIST,
PIN CODE: 583131.

...PETITIONER

(BY SRI. BASAVANA GOUD T, ADVOCATE)

AND:

GIRISH S/O SHANKAR NAIK,
AGE. 39 YEARS,

Digitally
signed by

SHIVAKUMAR
SHIVAKUMAR HIREMATH
HIREMATH

Date:
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R/O. GOWRIKALUVE,
MARIA STD ROAD,
VIJAYAPURA EXTENTION,
CHILLAMAGALURU TOWN,
PIN CODE-577101.

...RESPONDENT

(BY SRI. S. N. BANAKAR, ADVOCATE)

THIS CIVIL PETITION IS FILED UNDER SECTION 24 OF CPC,

1908, PRAYING TO TRANSFER THE MC NO. 12/2022, FILED BY THE RESPONDENT HEREIN PENDING ON THE FILE OF THE PRINCIPAL JUDGE FAMILY COURT, CHIKKAMAGALURU, TO SENIOR CIVIL JUDGE, HARAPANAHALLI FOR PROPER ADJUDICATION MEET THE ENDS OF JUSTICE AND EQUITY.

-2-

NC: 2023:KHC-D:8576

CP No. 100174 of 2022

THIS CIVIL PETITION, COMING ON FOR ORDERS, THIS DAY,
THE COURT MADE THE FOLLOWING:

ORDER

The present petition is filed by the petitioner/wife to transfer M.C.No.12/2022, filed by the respondent/husband pending on the file of Principal Judge, Family Court, Chikkamagaluru, to the Senior Civil Judge, Harapanahalli.

2. The necessary facts for adjudication of the present petition are that the marriage between the parties was solemnized on 29.04.2016 at Harpanahalli and they resided together in their matrimonial home at Gourikaluve village, Chikkamagaluru District. Two children were born to the parties from their wedlock. Due to various reasons, disputes arose between the parties in the matrimonial relationship, as a result of which the petitioner has started residing along with her parents for two years prior to filing of the present petition.

3. The respondent instituted M.C.No.12/2022 under Section 13(1) (ib) of the Hindu Marriage Act, before the Principal Judge Family Court, Chikkamagaluru. The petitioner has instituted a Criminal Miscellaneous No.396/2022 under NC: 2023:KHC-D:8576 Section 125 of the Cr.P.C., which is pending on the file of the Civil Judge and JMFC Court, Harpanahalli.

4. The learned counsel for the petitioner submits that since the petitioner is living along with her parents and is also taking care of the children of the parties, it will be difficult for her to travel to Chikkamagaluru for the purpose of contesting M.C.12/2022 proceedings instituted by the husband before the Principal Judge, Family Court Chikkamagaluru. It is further submitted that the husband is gainfully employed and also has income from agricultural activities whereas the wife has no independent source of income and is dependent on her parents for the livelihood of herself and her children. It is also submitted that the respondent is anyway required to travel to Harpanahalli for the purpose of contesting Criminal Miscellaneous No.396/2022, instituted by the petitioner. Hence, she seeks for allowing of the present petition and granting of the relief sought for.

5. The learned counsel for respondent has not seriously opposed to the above petition.

NC: 2023:KHC-D:8576

6. Having regard to the facts noticed above and having regard to the settled portion of law that the convenience of the wife will have greater preference in cases of transfer of matrimonial proceedings, it is expedient that the relief sought for by the petitioner in the present petition be granted.

In view of the aforementioned, I pass the following:

ORDER

i) The petition is allowed.

ii) M.C.No.12/2022 filed by the respondent, pending on the file of the Principal Judge Family Court, Chikkamagaluru shall stand transferred to the Court of the Senior Civil Judge, Harpanahalli.

iii) Both parties shall appear before the Court of the Senior Civil Judge, Harpanahalli, on 02.09.2023, without the requirement of issuing fresh notice in this regard.

NC: 2023:KHC-D:8576

iv) The transferee Court upon transfer shall conduct further proceedings in accordance with law.

v) All contentions of the parties are kept open.

(Sd/-) JUDGE PJ